

Incident Management and Reporting Policy

VERSION 1.0	EFFECTIVE	NEXT REVIEW	OWNER Principal / Key Management Personnel	APPROVED BY Governing body
-----------------------	-----------	-------------	--	--------------------------------------

PURPOSE AT A GLANCE

This policy explains how [] identifies, responds to, manages, records and learns from incidents — including the strict timeframes for notifying the NDIS Commission of a Reportable Incident (within 24 hours, or 5 business days) — so that every participant is safeguarded.

1. Purpose and scope

This policy supports [] to apply the Incident Management NDIS Practice Standard. It applies to all services and supports delivered by [] and to all employees, contractors and volunteers (**Workers**), who must take full responsibility for understanding and following it. It should be read alongside the related documents in the final section and the corresponding procedures in the Policy Register.

2. Policy aims

[] is committed to ensuring that:

- an incident management system is maintained that complies with the NDIS (Incident Management and Reportable Incidents) Rules 2018 and is proportionate to the size and scale of the organisation and the scope and complexity of support;
- each participant is given information about incident management, including how incidents involving them have been managed;
- incidents are managed consistently and effectively, workers can identify, manage, report and resolve them, and incident data informs improvement; and
- all workers are aware of, trained in, and comply with the incident procedures.

3. Our commitments

[] maintains an incident management system that is well documented, readily accessible to all workers, proportionate to the organisation, and reflective and adaptive with the intent of preventing incidents. Participants are given information on incident management. [] collects and reviews incident data to inform improvement and demonstrates continuous improvement through annual review of the system, review of the causes, handling and outcomes of incidents, and seeking participant and worker views.

4. Identifying and responding to incidents

A worker who observes an incident, or is told about one, that does or could cause permanent or temporary detriment to a participant, worker or other person must report it to the Principal (or Incident Manager) as soon as reasonably practicable. First responders contact police and emergency services where needed to ensure

health, safety and wellbeing, then the Incident Manager addresses the incident. Throughout the process, affected participants are supported — reassurance, help to access counselling and trauma support, involvement of advocates, and being kept informed.

5. Notifying the NDIS Commission of a Reportable Incident

For a Reportable Incident involving death, serious injury, abuse or neglect, unlawful sexual or physical contact or assault, or sexual misconduct, the Principal notifies the NDIS Commissioner in writing **within 24 hours** of a key management person becoming aware, using the Immediate Notification Form on the NDIS Commission Portal. The notification includes []'s details; a description of the incident; the impact on or harm caused to the person (except in the case of a death); the immediate actions taken and whether police or another body was notified; the notifier's details; the time, date and place; and the names and contact details of persons involved.

If there is insufficient information within 24 hours, the first five items are provided within 24 hours and the rest within **5 business days**. The names of witnesses and any further proposed actions are provided within 5 business days.

A Reportable Incident involving the use of a restrictive practice (not in accordance with an authorisation and behaviour support plan) is notified within **5 business days** using the 5 Day Notification Form.

[] is not required to obtain or disclose information where doing so would, or could reasonably be expected to, prejudice a criminal investigation or expose a person with disability to a risk of harm. Significant new information is passed to the Principal immediately and, where it changes the kind of incident or constitutes a further Reportable Incident, notified to the Commission as soon as practicable. A follow-up report (investigation details, findings, corrective action, whether affected persons were kept informed, and a copy of any investigation report) may be required within 60 business days.

6. Records and statistics

[] keeps an accurate incident register of every incident and every alleged Reportable Incident, recording the description and impact, whether it is a Reportable Incident, the time, date and place (or when first identified), persons involved and witnesses, the assessment undertaken, the actions taken and support provided, consultations with affected persons, whether they received reports or findings, any investigation details and outcomes, and who made the record. Records are kept for **7 years**. Statistical information is collected to review issues, identify and address systemic issues, and report to the NDIS Commission on request; learnings inform training (on an anonymous basis) and service delivery.

7. Privacy, training and improvement

Information connected with an incident — records, correspondence and the register, including any investigation — is kept confidential and only disclosed to those directly or indirectly involved (including for procedural fairness), to a legal or professional adviser, where reasonably required to investigate properly, or to the NDIS Commission, police or as required by law.

All workers are trained in the incident management system, the definition of a Reportable Incident, and the procedures for reporting incidents internally and externally, at induction and through refreshers. The Principal may undertake training in serious incident investigation and procedural fairness. The system is reviewed and evaluated at least annually, including a review of Incident Report Forms and participant and worker feedback, with a continuous improvement plan.

8. Definitions

[]
[], ABN [].

Client

A client of [], including an NDIS participant.

Key Management Personnel (KMP)

[], and other key management personnel involved in [] from time to time.

Principal

[].

Legislation Register

The register of legislation, regulations, rules and guidelines maintained by [].

Policy Register

The register of policies of [].

Worker

A permanent, fixed-term or casual member of staff, a contractor or a volunteer engaged by [], including the Principal.

Incident

Any act, omission, event or circumstance that occurs in connection with providing supports or services to a person with disability and has, or could have, caused harm to that person; any act by a person with disability, in connection with support, that has caused serious harm or a risk of serious harm to another person; and any Reportable Incident (including an alleged one).

Reportable Incident

In connection with supports and services: the death, serious injury, abuse or neglect of a person with disability; unlawful sexual or physical contact with or assault of a person with disability; sexual misconduct committed against or in the presence of a person with disability (including grooming); or the use of a restrictive practice other than in accordance with an authorisation and a behaviour support plan. (Negligible unlawful physical contact is not a Reportable Incident.)

Incident Manager

The person responsible and qualified for managing incidents — normally the Principal; or, where the Principal is directly and substantially involved in a serious incident, another Senior Staff Member or an External Incident Manager.

9. Related documents and approval

Related documents: Incident Report Form · Incident Management Register · Criteria for a Complaint Manager or Incident Manager · Procedural Fairness Considerations · Assessment, Investigation and Resolution Considerations · Feedback and Complaints Policy · Preventing and Responding to Violence, Abuse, Neglect, Exploitation and Discrimination Policy · Risk Management Policy · Continuous Improvement Register · Legislation Register · Policy Register.

Legislation and rules: as set out in the Legislation Register. If any part of this policy is inconsistent with applicable law, it is taken to be amended only to the extent needed to comply.

Approved by	[]
Approval date	[]

Next scheduled review	
Version	1.0

SAMPLE · NOT LICENSED